

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
VIRGINIA DOWNING,

Plaintiff,

-against-

SUMMONS

Basis of Venue:
Place of Incident

THE CITY OF NEW YORK,
NYPD SERGEANT MCCARTNEY Q. FORBES
(Shield #s 11038/3750), NYPD OFFICER KIERSTEN L.
CHAMBERS (Shield # 26702), NYPD OFFICERS JOHN
and JANE DOE #'s 1-10 (names and numbers unknown
at this time), and Other Unidentified members of the
New York City Police Department,

Plaintiff Designates
Kings County
as the place of trial

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 17, 2023

Respectfully submitted,

/s/ Rachelle Kredentser
Rachelle Kredentser, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(917) 997-8880
rsk@brownsteinlegal.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD SERGEANT MCCARTNEY Q. FORBES (Former Shield # 11038, Current Shield # 3750),
Uniformed Promotions Training Unit

NYPD OFFICER KIERSTEN L. CHAMBERS (Shield # 26702), 79th Precinct, 2603 Tompkins Avenue,
Brooklyn, New York, 11216-1220

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
VIRGINIA DOWNING,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK,
NYPD SERGEANT MCCARTNEY Q. FORBES
(Shield #s 11038/3750), NYPD OFFICER KIERSTEN L.
CHAMBERS (Shield # 26702), NYPD OFFICERS JOHN
and JANE DOE #'s 1-10 (names and numbers unknown
at this time), and Other Unidentified members of the
New York City Police Department,

Defendants.

-----X
Plaintiff **Virginia Downing**, by her attorney, RACHELLE KREDENTSER, ESQ., as and for the Complaint
herein, alleges upon information and belief as follows:

I. PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of Defendants' violations of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. Defendants unlawfully assaulted, stopped, searched, arrested, imprisoned, and maliciously prosecuted Plaintiff. Individually named and unnamed police officers deprived Plaintiff of her federal constitutional rights, state constitutional rights, and common law rights when the individually named police Defendants and unnamed Defendant officers subjected her to, among other things, assault, battery, false arrest, unlawful search and seizure, malicious prosecution, negligence, gross negligence, intentional and negligent infliction of emotional distress, and implementation and continuation of an Defendant' unlawful municipal policy, practice, and

custom. John and Jane Doe's failed to intervene to prevent the deprivation of constitutional, civil, and common law rights. Plaintiff additionally alleges Defendant municipality and its Defendant agents negligence in the hiring and retention of employees, negligence in the supervision, training and instruction of such employees, and *respondeat superior* liability under New York State law.

2. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper for the violation of their rights under the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and for state tortious acts of Defendants.
3. Plaintiff demands a jury trial.

II. PARTIES

4. Plaintiff Virginia Downing, hereinafter "Plaintiff," resides in Kings County, State of New York.
5. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated Plaintiff's rights as described herein. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. Defendant City of New York ("Defendant City") assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
6. Defendant McCartney Q. Forbes ("Defendant Forbes"), former assigned shield number 11038, current assigned shield number 3750, was employed with the 79th Precinct of the New York City Police Department ("NYPD") on or about February 21, 2023, and was at all times relevant herein an officer, employee, and agent of the NYPD.
7. Defendant Forbes is being sued in his individual and official capacities.

8. Defendant Kiersten L. Chambers, assigned shield number 26702, was employed with the 79th Precinct of the NYPD on or about February 21, 2023, and was at all times relevant herein an officer, employee, and agent of the NYPD.
9. Defendant Chambers is being sued in her individual and official capacities.
10. At all times relevant herein, the named and unnamed individual Defendants were employed with the 79th precinct of the NYPD, or another precinct of the NYPD, and were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties as officers, employees and agents of the New York City Police Department. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the NYPD.
11. Defendants John and Jane Does 1-10 are officers and/or staff in the NYPD. Once found in discovery, Plaintiff will amend the complaint to supply Defendants' full names. They are sued in their individual and official capacities.
12. In furtherance of her State causes of action, Plaintiff filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h)-hearing examination of Plaintiff on May 8, 2023.

III. STATEMENT OF FACTS

15. Plaintiff Ms. Downing is a mother of a 17-year-old son, who was 16 at the time of this arrest.
16. Plaintiff is diabetic and suffers from high blood pressure.

17. On February 21, 2023, at approximately 7:00 PM, Plaintiff received a worried call from her minor son.
18. Her son asked her to come downstairs from her apartment building.
19. The apartment was located at 263 Tompkins Avenue, Brooklyn, New York.
20. Upon exiting the apartment building, Plaintiff saw approximately five Defendant NYPD officers¹ around her 16-year-old son, with her son pushed against a police car.
21. Plaintiff asked the officers what was going on.
22. The individual Defendants responded that Plaintiff needed to wait and that they would provide her with information.
23. Over the next thirty minutes, Plaintiff repeatedly asked the officers why they were arresting her child.
24. After about thirty minutes, an individual Defendant officer handcuffed Plaintiff's son. He repeatedly asked why the Defendants were arresting him. No explanation was provided to Plaintiff nor her son.
25. An individual Defendant officer punched Plaintiff's minor son repeatedly in the face, including on his eye, and in his side, and kned the minor.
26. As the individual Defendant officer repeatedly struck her child, Plaintiff repeatedly told the Defendant officers that her child is only 16 years old.
27. Other Defendant officers did not stop the officer from punching the minor.
28. At one point, Defendant officer pushed Plaintiff and told her to move away.

¹ Hereinafter, "individual Defendants," "Defendant officers," and other like monikers refer to Defendant Forbes, Defendant Chambers, Defendant John and Jane Does 1-10, and/or other Defendant Unnamed Officers.

29. Plaintiff complied with Defendant officers' instructions to move away by moving out of the street, where the officers were located with her son, to the sidewalk.
30. Multiple Defendant officers again began hitting Plaintiff's child.
31. Plaintiff asked something to the effect of "Why are y'all hitting him? He's only sixteen."
32. A Defendant officer replied something to the effect of "I don't give a fuck."
33. Plaintiff Ms. Downing repeatedly told the Defendants that her son is only a child.
34. Defendant individual officers told Plaintiff that if she did not stop speaking, she would be arrested.
35. The officer told Plaintiff something to the effect of "back the fuck up," and Plaintiff complied.
36. Defendant officers threw Plaintiff's minor son into the back of a police car.
37. Plaintiff did not curse at any officer.
38. Plaintiff did not threaten any officer.
39. Plaintiff did not touch any officer.
40. Defendant police officers took Plaintiff's minor son to the 79th precinct.
41. Plaintiff walked to the precinct with her son's girlfriend, Destiny Vanable, and another relative.
42. Plaintiff went into the precinct hoping to speak with Defendant Forbes and/or another Defendant officer. Plaintiff went to the front desk and asked to speak with that Defendant officer.
43. Before Plaintiff could speak, Defendant Forbes, Defendant Chambers and/or multiple other individual Defendant officers arrested Plaintiff. Multiple Defendant officers held her and handcuffed her. The other Defendant officers watched.
44. Plaintiff still has scars from the handcuffs being too tight.
45. Plaintiff told multiple Defendant officers that the handcuffs were too tight, causing bruises.
46. Defendant officers refused to loosen or adjust the handcuffs.

47. Plaintiff Ms. Downing asked what she was being arrested for and a Defendant officer replied something to the effect of, “resisting arrest.”
48. Plaintiff Ms. Downing had not resisted arrest.
49. In fact, no officers had previously attempted to arrest Plaintiff.
50. Plaintiff requested medical assistance because she was not feeling well. She was taken to the hospital. Plaintiff’s blood pressure and glucose numbers were up. Plaintiff was at the hospital for about 3 hours.
51. Plaintiff had told Defendant officers she had high blood pressure and diabetes.
52. Defendant officers deprived Plaintiff of sufficient food, water, and medication.
53. As a result of the arrest, Plaintiff had long lasting high blood pressure that took time to return to normal following her release.
54. Plaintiff suffered emotional injuries as a result of her false arrest and detention. Such injuries included mental anguish, shock, fright, apprehension, embarrassment and humiliation.
55. At some point, the Defendant officer who hit Plaintiff’s son apologized to Plaintiff at the precinct.
56. Plaintiff was released on her own recognizance at arraignment.
57. On October 20, 2023, the court dismissed Plaintiff’s charges.

IV. CAUSES OF ACTION

A. State Claims

Count 1: ASSAULT

58. New York provides a tort claim against government employees for assault.
59. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 4 through 57 with the same force and effect as if more fully set forth herein.

60. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to Plaintiff, and that such acts caused apprehension of such contact in Plaintiff. Plaintiff was assaulted by an individual Defendant NYPD Officer when the officer pushed Plaintiff. A Defendant officer further assaulted Plaintiff by putting her in imminent fear of additional assault when she was talking to officers and they threatened to arrest her, and when they yelled at Plaintiff, making her fear further bodily contact. Defendant officers put handcuffs unnecessarily tightly on Plaintiff and refused to loosen or adjust them, causing injury to her wrists.
61. Defendant officers were at all times agents, servants, and employees acting within the scope of their employment by Defendant City of New York, via the New York City Police Department, which are therefore responsible for their conduct.
62. Defendant City, as the employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 2: BATTERY

63. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 4 through 57 with the same force and effect as if more fully set forth herein.
64. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner with the intention of causing harmful and/or offensive bodily contact to Plaintiff and caused such battery. Plaintiff was forcibly pushed. This act was committed without justification,

and was committed by a Defendant Officer prior to her false and illegal arrest. Defendant officers also forcefully overly-tightly handcuffed Plaintiff.

65. Individual Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
66. The City, as the employer of individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 3: FALSE ARREST AND FALSE IMPRISONMENT

67. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 4 through 57 as if fully set forth herein.
68. The acts and conduct of Defendant officers constitute false arrest and false imprisonment under the laws of the State of New York. Defendants Chambers, Forbes, and/or John and Jane Does 1-10, and/or unnamed Defendant officers intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
69. Specifically, Defendant officers, including but not limited to the Defendant Forbes and/or Defendant Chambers, physically detained, arrested, and imprisoned Plaintiff.
70. The individually named Defendants were at all times agents, servants, and employees acting within the scope of their employment by the Defendant City of New York and the New York City Police Department, which are therefore responsible for their conduct.
71. The Defendant City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 4: MALICIOUS PROSECUTION

72. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 4 through 57 with the same force and effect as if more fully set forth at length herein.
73. The acts and conduct of the individual Defendants constitute malicious prosecution under the laws of the State of New York.
74. Defendants Chambers, Forbes, and/or John and Jane Does and/or unnamed officers commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused her a serious deprivation of liberty as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
75. Defendant officers, including Defendants Chambers and Forbes, commenced the proceeding based on falsified claims that Plaintiff had struck an officer.
76. Defendants made such falsified allegations and forwarded such information to the Kings County District Attorney's Office.
77. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which she was prosecuted.
78. Absence of probable cause itself constitutes malice.
79. The prosecution and criminal proceedings terminated favorably to Plaintiff when the claims were dismissed.
80. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate her state constitutional and tort rights.
81. Defendant Officers were at all times agents, servants, and employees acting within the scope of their employment by Defendant City of New York and the New York City Police Department, which are therefore responsible for their conduct.

Count 5: NEGLIGENCE HIRING, RETENTION, TRAINING AND SUPERVISION

82. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 4 through 57 with the same force and effect as if more fully set forth at length herein.
83. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties. Such negligence includes but is not limited to failure to adequately train, retain, hire and supervise.

Count 6: FAILURE TO INTERVENE

84. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 4 through 57 with the same force and effect as if more fully set forth at length herein.
85. Individual Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other Defendant members of the NYPD, subjecting Plaintiff to, *inter alia*, assault, battery, unlawful search and seizure, detention, and malicious prosecution.
86. Individual Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
87. Specifically individual Defendants stood by and watched such unlawful conduct.
88. As a result of the foregoing, Plaintiff was subjected to assault, battery, illegal arrest, search and undue force upon her person over the course of her false arrest.
89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York via the New York City Police Department, which are therefore responsible for their conduct.

90. Defendant City, as the employer of Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 7: NEGLIGENCE

91. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 4 through 57 with the same force and effect as if more fully set forth at length herein.
92. Defendants owed a duty of care to Plaintiff.
93. Defendants Forbes, Chambers, and/or John and Jane Does 1-10 breached that duty of care by subjecting her to unjustified acts of assault, battery, illegal arrest and search and undue force and unprivileged deprivation of her liberty without sufficient or any cause to do so.
94. Defendants further breached the duty of care by providing insufficient food and water to Plaintiff, who expressed to officers that she suffered from diabetes and high blood pressure.
95. As a direct and proximate cause of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
96. All of the foregoing occurred without any fault by Plaintiff.
97. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

Count 8: INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

98. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 4 through 57 with the same force and effect as if more fully set forth at length herein.
99. By the actions described herein, the individually named and unnamed individual Defendant officers, including Defendants Forbes, Chambers, and/or John and Jane Does, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional

distress to Plaintiff. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

100. Such outrageous included, but is not limited to, Defendant officers brutal and unnecessary punching and kicking of Plaintiff's minor child directly in front of Plaintiff, and Defendant officers pushing Plaintiff and yelling obscenities at Plaintiff while in the process of assaulting her child, Defendant officers falsely arresting Plaintiff, and failing to timely provide adequate medication and care to Plaintiff.

101. As a result of the foregoing, Plaintiff was deprived of liberty and sustained great emotional injuries.

102. Defendant City, as the employer of the Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

B. FEDERAL CLAIMS

103. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

104. All of the aforementioned acts were carried out under the color of state law.

105. All of the aforementioned acts deprived Plaintiff of her rights, privileges, and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

106. The acts complained of were carried out by Defendants Forbes, Chambers, John and Jane Does 1-10, and unnamed officers in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

107. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of Defendant City of New York and the New York City Police Department, all under the supervision of ranking officers of said department or office.

108. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**Count 9: VIOLATION OF THE FIRST AMENDMENT RIGHT TO FREEDOM OF SPEECH
UNDER 42 U.S.C. § 1983**

109. Plaintiff realleges and incorporates by reference as if fully set forth herein the allegations in all preceding paragraphs.

110. The First Amendment to the United States Constitution prohibits abridgement of the freedom of speech. The First Amendment is incorporated against the States by the Fourteenth Amendment. Persons violating the First Amendment under color of state law are liable at law and in equity under 42 U.S.C. § 1983.

111. Plaintiff's constitutionally protected speech included her communications with officers, including wherein when she asked why her son was being arrested.

112. Individual Defendant's actions, including but not limited to telling Plaintiff to "shut the fuck up" and threatening arrest while acting aggressively towards Plaintiff unconstitutionally deprived Plaintiff of her First Amendment rights as Plaintiff faced the imminent threat of being assaulted again or being cited while engaging in constitutionally protected speech and her speech was chilled. Defendant officers arrested her in retaliation of her inquiring about the well-being of her son and the reason for his arrest.

**Count 10: VIOLATION OF THE FOURTH AMENDMENT - USE OF EXCESSIVE FORCE
UNDER 42 U.S.C. § 1983**

113. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
114. Defendants Forbes, Chambers, unnamed officers, and/or John and Jane Does 1-10 used excessive force in violation of Plaintiff's rights under the Fourth Amendment to the United States Constitution to be free of the use of excessive force.
115. Defendant officers Forbes, Chambers, unnamed officers, and/or John and Jane Does 1-10 committed the intentional torts of assault and battery against Plaintiff by pushing Plaintiff, unlawfully arresting Plaintiff and by excessively tightly handcuffing Plaintiff.
116. In so doing, the conduct of Individual NYPD Defendant officers went well beyond the reasonable force necessary to detain and arrest Plaintiff, and the amount of force that a reasonable officer under the same or similar circumstances would use.
117. Plaintiff told individual NYPD Defendant officers that the handcuffs were too tight.
118. Individual NYPD Defendant officers did not fix the handcuffs. They did not provide medical attention for injuries caused by the handcuffs.
119. At the time of the acts of force, Plaintiff was complying with Defendants and did not act in a manner that would any way justify the use of physical force.
120. As a result of the foregoing, Plaintiff was the victim of the torts of assault and battery resulting in physical and emotional injuries.

**Count 11: VIOLATION OF THE FOURTH AMENDMENT - UNREASONABLE
SEIZURE/FALSE ARREST UNDER 42 U.S.C. § 1983**

121. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

122. The Fourth Amendment to the United States Constitution prohibits unreasonable searches and seizures. The purpose of the Fourth Amendment's protection against unreasonable seizures is "to prevent arbitrary and oppressive interference by enforcement officials with the privacy and personal security of individuals." The Fourth Amendment also ensures "the ability of persons to move or travel about the United States without fear of being stopped or detained unless the police have an adequate constitutional justification for doing so."
123. The Fourth Amendment is incorporated against the states by the Fourteenth Amendment.
124. As a result of the aforesaid conduct by Defendants Forbes, Chambers, unnamed officers, and/or John and Jane Does 1-10, Plaintiff was subjected to an illegal, improper, and false arrest by the Defendants, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
125. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for her safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

**Count 12: VIOLATION OF THE FOURTH AMENDMENT UNLAWFUL SEARCH
UNDER 42 U.S.C. § 1983**

126. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
127. Plaintiff was searched while individual NYPD officer Defendants Chambers, Forbes, unnamed officers, and/or John and Jane Does 1-10 arrested Plaintiff without an individualized reasonable suspicion that Plaintiff had committed any crime.
128. As a result of the aforesaid conduct by individual Defendants, Plaintiff's person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause as set forth in the First, Fourth,

Fifth, and Fourteenth Amendments, and incorporated against the States in the Fourteenth Amendment to the Constitution of the United States.

129. Specifically, Individual Defendants lacked probable cause and manipulated evidence and arrested Plaintiff for plainly false allegations that Plaintiff struck a police officer.

130. As a result of the foregoing, Plaintiff was deprived of her Constitutional rights and has suffered mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

Count 13: DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

131. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

132. Defendant Forbes, Chambers, unnamed officers, and/or John and Jane Does 1-10 created false evidence against the Plaintiff, alleging that she committed the crimes of resisting arrest, obstruction of governmental administration, assault, and harassment.

133. These Defendants, including Defendant Forbes and/or Defendant Chambers, forwarded false evidence and false information to prosecutors in the Kings County District Attorney's Office – namely, the Defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff committed offenses constituted resisting arrest and obstructive governmental administration, when, in fact, they had no physical evidence or other reliable evidence to establish the Plaintiff had committed the aforementioned offenses, and, in fact, did not have probable cause to arrest her for said offenses.

134. These Defendants misled the prosecutors by creating false evidence against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.

135. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, Defendants violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process

Clause of the Fifth Amendment, incorporated against the states by the Fourteenth Amendment of the United States Constitution.

136. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subjected to handcuffing and other physical restraints without probable cause.

Count 14: MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

137. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
138. Defendants Forbes, Chambers, unnamed officers, and/or John and Jane Does 1-10 misrepresented and falsified evidence before the Kings County District Attorney, including false allegations that Plaintiff committed any illegal acts, including resisting arrest, assault, and obstruction of governmental administration.
139. Defendants did not make a complete and full statement of facts to the District Attorney.
140. Defendants withheld exculpatory evidence from the District Attorney.
141. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff.
142. Defendants lacked probable cause to initiate criminal proceedings against plaintiff.
143. Defendants acted with malice in initiating criminal proceedings against plaintiff.
144. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.
145. Defendants lacked probable cause to continue criminal proceedings against plaintiff.
146. Defendants acted with malice in continuing criminal proceedings against plaintiff.
147. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

148. Specifically, Defendants made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest.
149. Notwithstanding the perjurious and fraudulent conduct of defendants, the proceedings were terminated in Plaintiff's favor on October 20, 2023.
150. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for her safety, and among other injuries, she was humiliated and subjected to handcuffing and other physical restraints without probable cause.

Count 15: FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

151. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
152. Defendants Forbes, Chambers, unnamed officers, and/or John and Jane Does 1-10 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, including when other Defendant officers committed the acts of assault, battery, false arrest, unlawful imprisonment, and the misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings.
153. Defendants further violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
154. As a result of the Defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, physical and emotional injuries, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subjected to handcuffing, without probable cause.

Count 16: MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

155. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
156. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
157. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and
 - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. failing to intervene when officers are unlawfully detaining and arresting individuals without probable cause; and
 - E. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
 - F. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

158. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.
159. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.
160. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.
161. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff's constitutional rights.
162. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.
163. The acts complained of deprived the Plaintiff of her right:
- A. Not to be deprived of liberty without due process of law;
 - B. To be free from seizure and arrest not based upon probable cause;
 - C. To exercise freedom of speech and to not have that freedom abridged nor chilled; and
 - D. Not to have summary punishment imposed upon them.

WHEREFORE, VIRGINIA DOWNING, respectfully requests this Court issue a judgment against Defendants on each cause of action in amounts to be determined upon a jury trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive

of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Specifically, Plaintiff requests the Court

- A. declare that Defendants violated Plaintiffs rights under the First, Fourth, Fifth, and Fourteenth Amendments;
- B. declare that preventing peaceful speech violates the First Amendment;
- C. award compensatory and punitive damages for the violation of their constitutional rights;
- D. award punitive and compensatory damages for tortious claims;
- E. award plaintiffs costs and a reasonable attorney's fee pursuant to 42 U.S.C. § 1988; and
- F. grant or award other such relief as this Court deems just and proper.

Dated: New York, New York
May 17, 2024

Respectfully submitted:

By: /s/ Rachelle Kredentser
Rachelle Kredentser, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
rsk@brownsteinlegal.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD SERGEANT MCCARTNEY Q. FORBES (Former Shield # 11038, Current Shield # 3750),
Uniformed Promotions Training Unit

NYPD OFFICER KIERSTEN L. CHAMBERS (Shield # 26702), 79th Precinct, 2603 Tompkins Avenue,
Brooklyn, New York, 11216-1220.

ATTORNEY'S VERIFICATION

I, **Rachelle Kredentser**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **BROWNSTEIN LEGAL, P.C.**, I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files.

DATED: New York, New York
May 17, 2024

/s/ Rachelle Kredentser
Rachelle Kredentser, Esq.